

LYCEON — Counsel Package: Launch Legal Drafts

Internal; prepared for outside counsel. Prepared 2026-10-07. This package covers the 12 launch-state legal drafts in docs/compliance/legal-drafts/ (see that folder's README.md). **The legal text of the drafts is unchanged by this package.** The drafts follow in reading order after this note.

1. Cover note

What LYCEON is. LYCEON is an online preparation service for the SAT. It provides:

- daily practice questions with a worked explanation after each answer;
- a diagnostic test;
- full-length practice tests with score reports;
- a study plan and calendar;
- a progress view for a connected parent or guardian;
- LISA, an AI tutor.

A free plan covers daily practice (40 questions a day), worked explanations, review and the diagnostic. A paid monthly subscription adds full-length practice tests, the AI tutor and the study plan. A public "SAT Question of the Day" can be answered without an account.

Who uses it.

- **Students**, mainly aged 13 to 18.
- **Students under 13**, who can use the learning features only while a parent or guardian is connected to their account. LISA, analytics, session recording, marketing and review invitations are all closed to users under 13 (Children's Online Privacy Notice; Privacy Policy §4).
- **Parents and guardians**, who connect to a student's account and have a view-only progress view. Visibility requires an active connection and the student's active plan.
- **Schools and districts**, which may use LYCEON for their students under the SDPC National Data Privacy Agreement and the School Data Privacy Addendum (FERPA "school official").

Where it operates. United States only at launch (owner ruling, 2026-10-07). LISA and the whole service are US-scoped from a legal perspective. Please review the drafts against US law:

- **COPPA** (16 CFR Part 312);
- **FERPA** (34 CFR Part 99);
- **CAN-SPAM** (15 U.S.C. §7701 et seq.);
- **FTC Act §5**, including advertising substantiation for the claims in §6 below;
- **state privacy law**, including California (CCPA/CPRA, CalOPPA) and the universal opt-out laws of other states.

Some drafts also address the EU, UK, Ireland, Australia or Canada. Those passages remain in the drafts as written. The checklist questions that apply only to those markets are marked **"not applicable at launch: US only"** in §3 below and are kept for later. Counsel may advise whether those passages should stay in the published text for a US-only launch.

Processors at launch (Sub-Processor List):

Provider	Role
Supabase	Database and authentication
Vercel	Hosting
Stripe	Payments
Google Cloud	AI services, content safety and background processing
Google	Sign in with Google
Resend	Email
Desmos	Graphing calculator
Slack	Internal team notifications (identifiers only)
PostHog	Product analytics and session recording; only after cookie consent, never for users under 13
Cloudflare	Turnstile bot protection
Trustpilot	Customer reviews; adults and guardians only

Current state, for context:

- Analytics loads only after the visitor accepts cookies, and a Global Privacy Control signal is treated as a refusal.
- Session recording is enabled, with the question-and-answer areas and the AI-tutor conversation excluded from capture.
- No personal information is sold or shared for cross-context behavioural advertising.

What we ask counsel to do:

1. Review and tighten each of the 12 drafts. They are industry-standard drafts written to be accepted or tightened, not bespoke mechanisms.
2. Answer the 69 checklist questions in §3.
3. Supply or confirm the placeholders in §4 that are counsel's.
4. Confirm or tighten the public marketing claims in §5.
5. Record a sign-off per draft. Each signed-off draft is then published in the product's versioned legal folder.

2. The drafts, in reading order

#	Draft	File	Replaces
1	Privacy Policy, version 5	privacy-policy-v5.md	published v4
2	Children's Online Privacy Notice	childrens-privacy-notice.md	new
3	Parental Consent Mechanism	parental-consent-mechanism.md	new
4	Cookie Policy	cookie-policy.md	new
5	Cookie Banner and Consent Notice text	cookie-banner-text.md	new
6	California Notice at Collection	ca-notice-at-collection.md	new
7	California Do Not Sell or Share / Global Privacy Control	ca-do-not-sell-share-gpc.md	new
8	AI Content Disclosure	ai-content-disclosure.md	new
9	Marketing Communications Consent	marketing-communications-consent.md	new
10	Billing Terms, version 3	billing-terms-v3.md	published v2
11	School Data Privacy Addendum	school-data-privacy-addendum.md	new
12	Sub-Processor List	sub-processor-list.md	new

The order runs from the Privacy Policy, through the children's and consent documents, cookies, California notices, AI, marketing and billing, to the school and processor documents. Each draft ends with "Standard sources followed" and its own "Counsel checklist". Both sections are removed on publication.

3. Counsel checklist questions (69), grouped by draft

Each question appears once, under the draft that raises it, numbered as in that draft. Where two drafts ask the same thing, a "See also" note cross-references the other. Answering one may answer both, but neither is dropped. Questions that apply only to markets outside the United States are marked **Not applicable at launch: US only**.

3.1 Privacy Policy, version 5 (PP, 15)

- **PP-1.** Confirm that the parental consent method in Section 4.1 meets 16 CFR §312.5(b). *See also CN-1, PC-1.*
- **PP-2.** Confirm whether 16 CFR §312.5(c)(1) requires deletion of an under-13 account's sign-up information if no parent or guardian connects within a set period. *See also CN-2.*
- **PP-3.** Confirm the retention of consent records in Section 6.2.
- **PP-4.** Complete the analytics and session recording retention periods in Section 6.6.

- **PP-5.** Confirm whether any analytics may run before a cookie choice is made in the EU and UK (ePrivacy Directive Article 5(3)). **Not applicable at launch: US only.**
- **PP-6.** Confirm the characterization of Desmos and Trustpilot as service providers. *See also DNS-2, SP-2.*
- **PP-7.** Confirm the legal basis for review invitations in Section 8.2.
- **PP-8.** Confirm the international transfer statement in Section 10. **Not applicable at launch: US only.** Processor locations remain in SP-1.
- **PP-9.** Confirm the FERPA wording in Section 5.5.
- **PP-10.** Confirm the change-notice wording in Section 11.
- **PP-11.** Confirm that Section 5.2 and the Sub-Processor List are complete on the publication date. *See also SP-5.*
- **PP-12.** Insert the postal address in Section 12. *See also CN-3, MC-3; §4.*
- **PP-13.** Set retention periods for in-app reviews, private feedback and marketing-consent records (Sections 1.1 and 2). No period is stated in this draft. As built, each is kept until the account is deleted and is deleted with it; marketing-consent records are not otherwise expired.
- **PP-14.** Confirm that accepting private feedback from users under 13 (Section 4.3) is covered by the parental notice and consent in Sections 4.1 and 4.5.
- **PP-15.** Confirm the legal basis for keeping marketing-consent records after consent is withdrawn (Section 2), and for how long (item 13). *See also MC-4.*

3.2 Children's Online Privacy Notice (CN, 6)

- **CN-1.** Confirm that the parental consent method in Section 2 meets 16 CFR §312.5(b). *See also PP-1, PC-1.*
- **CN-2.** Confirm whether 16 CFR §312.5(c) permits holding the information described in Section 2 before a parent or guardian connects, and for how long. *See also PP-2.*
- **CN-3.** Insert the postal address and telephone number in Section 1 (16 CFR §312.4(d)(1)). *See also PP-12, MC-3; §4.*
- **CN-4.** Confirm whether referring to the Privacy Policy satisfies the retention policy requirement in 16 CFR §312.10.
- **CN-5.** Confirm that retaining de-identified learning records after deletion is consistent with 16 CFR §312.10.
- **CN-6.** Confirm whether jurisdiction-specific sections are required (Ireland, Australia, UK Children's Code). **Not applicable at launch: US only.**

3.3 Parental Consent Mechanism (PC, 5)

- **PC-1.** Confirm whether the process in Sections 1 to 4 is a verifiable parental consent method under 16 CFR §312.5(b), or which method must be added. *See also PP-1, CN-1.*
- **PC-2.** Confirm whether a payment-card transaction at checkout may serve as a verification method for subscribing families.
- **PC-3.** Confirm the consent statement, including the 13 to 17 variant.
- **PC-4.** Confirm that the consent record is adequate evidence of consent.

- **PC-5.** Confirm the position for jurisdictions with a digital age of consent above 13 (for example Ireland). **Not applicable at launch: US only.**

3.4 Cookie Policy (CP, 5)

- **CP-1.** Complete each duration marked [●]. *See §4.*
- **CP-2.** Confirm the strictly necessary classification of each local storage and session storage item.
- **CP-3.** Confirm whether Desmos, Cloudflare Turnstile or any Trustpilot content on the website stores information in the browser, and whether any of it requires consent.
- **CP-4.** Confirm the 6-month duration of the cookie consent record. *See also CB-4.*
- **CP-5.** Confirm that the Do Not Track statement meets Cal. Bus. & Prof. Code §22575(b)(5).

3.5 Cookie Banner and Consent Notice text (CB, 5)

- **CB-1.** Confirm that the first layer provides clear and comprehensive information under ePrivacy Directive Article 5(3). **Not applicable at launch: US only.**
- **CB-2.** Confirm whether session recording requires a separate choice from analytics.
- **CB-3.** Confirm the Global Privacy Control handling for users in the EU and UK. **Not applicable at launch: US only.** US GPC handling is DNS-3.
- **CB-4.** Confirm the 6-month interval before the choice is requested again. *See also CP-4.*
- **CB-5.** Confirm the content and retention period of the consent record.

3.6 California Notice at Collection (CA, 5)

- **CA-1.** Confirm the category mapping, including "education information" (§1798.140(v)(1)(J)) and the category for tutor conversation text.
- **CA-2.** Confirm that the retention periods meet 11 CCR §7012(e)(4).
- **CA-3.** Confirm the classification of date of birth.
- **CA-4.** Confirm placement at sign-up and checkout under 11 CCR §7012(c).
- **CA-5.** Confirm whether LYCEON meets a CCPA applicability threshold.

3.7 California Do Not Sell or Share / Global Privacy Control (DNS, 4)

- **DNS-1.** Confirm whether this notice is required under 11 CCR §7013(a), and the title of the footer link.
- **DNS-2.** Confirm that the PostHog and Trustpilot relationships are service-provider relationships and not "sharing" under §1798.140(ah). *See also PP-6, SP-2.*
- **DNS-3.** Confirm how a GPC signal applies to a signed-in account under 11 CCR §7025(c)(1).
- **DNS-4.** Confirm the wording covers universal opt-out mechanisms under other state laws (for example Colorado, Connecticut and Texas).

3.8 AI Content Disclosure (AI, 5)

- **AI-1.** Confirm that Section 1 meets the transparency obligations in AI Act Article 50(1). **Not applicable at launch: US only.**
- **AI-2.** Assess whether the service is high-risk under AI Act Annex III. **Not applicable at launch: US only.**
- **AI-3.** Confirm the statement in Section 2 that no automated decisions with legal or similarly significant effects are made (GDPR Article 22). **Not applicable at launch: US only.**
- **AI-4.** Confirm whether an Australian automated decision-making disclosure is required. **Not applicable at launch: US only.**
- **AI-5.** Confirm whether an in-product reporting option is required in addition to email.

3.9 Marketing Communications Consent (MC, 5)

- **MC-1.** Confirm that marketing to students aged 13 to 17 who opt in is permitted in each launch market, and whether parental notice is required. At launch the only market is the United States.
- **MC-2.** Confirm that the checkbox wording meets CASL's express consent requirements. **Not applicable at launch: US only.**
- **MC-3.** Insert the postal address in Section 6 (CAN-SPAM §7704(a)(5); CASL). The CAN-SPAM requirement applies at launch. *See also PP-12, CN-3; §4.*
- **MC-4.** Confirm the consent record fields and their retention period after opt-out. *See also PP-15.*
- **MC-5.** Confirm the unsubscribe processing wording.

3.10 Billing Terms, version 3 (BT, 4)

- **BT-1.** Confirm that "practice beyond the free plan's daily limit" accurately describes the paid plan, and whether any per-session limit must be disclosed.
- **BT-2.** Confirm the description of parent and guardian access in Section 1.
- **BT-3.** Confirm whether the changes from version 2 require existing subscribers to consent again, or notice under Section 9.
- **BT-4.** Confirm consistency with the Subscription and Auto-Renewal Notice.

3.11 School Data Privacy Addendum (SA, 5)

- **SA-1.** Confirm the school authorization wording in Section 2.
- **SA-2.** Confirm the standard position on de-identified data after termination.
- **SA-3.** Name the security framework for the NDPA security exhibit.
- **SA-4.** Confirm which state exhibits to prepare first.
- **SA-5.** Confirm whether this addendum is published or supplied to schools on request.

3.12 Sub-Processor List (SP, 5)

- **SP-1.** Complete each location, and the transfer safeguard for each provider (standard contractual clauses, UK addendum or Data Privacy Framework). The locations apply at launch. **The transfer safeguards are not applicable at launch: US only.** *See §4.*

- **SP-2.** Confirm the processor characterization of Desmos, Slack and Trustpilot. *See also PP-6, DNS-2.*
- **SP-3.** Confirm whether to commit to a notice period before engaging a new sub-processor.
- **SP-4.** Confirm that a data processing agreement is in place with each provider.
- **SP-5.** Confirm that the list is complete on the publication date. *See also PP-11.*

Count: PP 15 + CN 6 + PC 5 + CP 5 + CB 5 + CA 5 + DNS 4 + AI 5 + MC 5 + BT 4 + SA 5 + SP 5 = **69**.

Not applicable at launch: US only: PP-5, PP-8, CN-6, PC-5, CB-1, CB-3, AI-1, AI-2, AI-3, AI-4, MC-2, and the transfer-safeguard part of SP-1.

4. Open placeholders

Every placeholder left in the drafts: each [•], [POSTAL ADDRESS], [TELEPHONE] and [link]. The bracketed button labels in the cookie banner text (for example [Accept all]) are interface labels, not placeholders.

Placeholder	Where	Who	Checklist
Postal address	Privacy Policy §12 ([POSTAL ADDRESS]); Children's Notice §1; Marketing Consent §6	LYCEON (Karl)	PP-12, CN-3, MC-3
Telephone number	Children's Notice §1 ([TELEPHONE])	LYCEON (Karl)	CN-3
Analytics retention (months)	Privacy Policy §6.6	Counsel with LYCEON	PP-4
Session recording retention (days)	Privacy Policy §6.6	Counsel with LYCEON	PP-4
In-app review, private feedback and marketing-consent record retention	Privacy Policy §1.1 and §2 (no period stated)	Counsel	PP-13, PP-15, MC-4
Cookie consent record retention	Banner consent record	Counsel	CB-5
Cookie durations (4)	Cookie Policy §3: sb-<project>-auth-token, __Host-csrf, the Turnstile security check, ph_<project>_posthog	Counsel with LYCEON	CP-1
Sub-processor locations (11)	Sub-Processor List: Supabase, Vercel, Stripe, Google Cloud, Google, Resend, Desmos, Slack, PostHog, Cloudflare, Trustpilot	Counsel with LYCEON	SP-1
Privacy Policy link	California Notice at Collection, final line (Privacy Policy: [link])	Set on publication (the published Privacy Policy URL)	—
Effective date (11)	Every draft's header except the Sub-Processor List	Set on publication	—

Placeholder	Where	Who	Checklist
Last updated (1)	Sub-Processor List header	Set on publication	—

5. Public claims for counsel to confirm

These are on LYCEON's public pages. Karl has approved each one, and each is recorded with its support in the internal claim inventory (docs/compliance/claim-inventory.md). We ask counsel to confirm each as acceptable under FTC advertising standards, or to tighten it.

1. **"Study Smarter, Score Higher"** (slogan, on the homepage and every public footer; inventory X1, H43). It is an implied score-improvement claim. Test-prep score claims are the kind regulators expect substantiation for. LYCEON publishes no score-improvement statistic. Is it acceptable as a slogan, or should it be tightened?
2. **"SAT prep that adapts to you."** (homepage headline; inventory H32). Adaptivity is part of the paid study plan only. The line directly beneath it (H33) names the paid plan. Is that scoping sufficient?
3. **"An always-available alternative to private tutoring"** (homepage; inventory H33). This is a category comparison with private tutoring, not with a named company. Is any additional disclosure needed?
4. **Competitor price data and the LYCEON-versus-a-tutor comparison** (parent pages /sat-tutor-cost, /lyceon-vs-sat-tutor, /is-sat-tutoring-worth-it; inventory W7–W9 and their sources). Third-party tutoring prices are cited, dated "as viewed" and sourced. LYCEON's own price is read live from Stripe and never written into the page. Is the presentation acceptable, and how often must cited prices be re-checked?
5. **Free-plan claims:** "40 practice questions a day", "A worked explanation after every question", "A full diagnostic test", "No credit card required" (inventory W1, H37, H39, H43, M9). Are these free-plan statements acceptable, given that the paid plan is described alongside them?

6. Rebuilding this package

The PDF in out/ is generated from this file and the 12 drafts by `pnpm run build:counsel-pdf`, which uses no new dependencies. Each page footer names the source commit. Regenerate the PDF before sending, so that it matches the drafts as committed.

LYCEON Privacy Policy

Version 5 · Effective date: [●]

LYCEON respects your privacy and is committed to protecting personal information. This Privacy Policy explains how we collect, use, store, share and protect information when students, parents and guardians use the LYCEON platform.

This policy applies to students using LYCEON, parents or guardians connected to a student account, people who pay for a subscription, and visitors to the LYCEON website or app.

1. Information We Collect

1.1 Information You Provide

- Name or username
- Email address
- Date of birth
- Account credentials, or your Google account if you sign in with Google
- A parent's or guardian's email address, if a student asks us to send them a link code
- Messages, responses or feedback submitted through the platform, including private feedback you send to the LYCEON team
- Reviews you choose to leave about LYCEON: a star rating, optional text, and whether LYCEON may quote the review anonymously
- Your choice about marketing emails, and when and where you made it

1.2 Learning and Usage Data

- Answers submitted to questions
- Progress and performance data
- Time spent on activities
- Interaction with explanations and AI tools

1.3 Technical and Device Data

- Device type and browser
- IP address
- Log data and error reports
- Cookies and similar technologies, as described in the **LYCEON Cookie Policy**

1.4 Billing Information

We do not store payment card numbers. Payments are processed by Stripe. Stripe receives and stores the payer's name, email address, billing address and payment method details. We store subscription details, such as the subscription status, the billing period and the student account the subscription applies to.

2. How We Use Information

We use information to:

- provide and operate the LYCEON platform;
- personalize learning, for example by tracking progress by skill;
- improve explanations and content quality;
- monitor platform performance, reliability and security;
- prevent abuse, cheating or misuse;
- process payments and manage subscriptions;
- invite customers to review LYCEON, and read the reviews and private feedback they send to improve the service;
- quote a review anonymously, only if its author allowed it;
- keep a record of marketing email choices, so we can honor them and show when consent was given or withdrawn; and
- send service messages, and marketing messages only if you opt in (see the **LYCEON Marketing Communications Consent**).

We do not use personal information for targeted advertising, and we do not sell personal information.

3. Artificial Intelligence

LYCEON uses artificial intelligence to support learning. The **LYCEON AI Content Disclosure** explains what this means for you.

3.1 Personalization

Learning data is used to adapt explanations and practice to the student.

3.2 Service Improvement

We may analyze data in aggregated, de-identified or pseudonymized form to improve the quality, accuracy, safety and reliability of the service.

3.3 Third-Party AI Services

Conversations with LISA, our AI tutor, are processed by Google Cloud. Data shared with these services is limited to what is needed for the conversation, and Google is contractually prohibited from using it to train public or general-purpose models.

No information from a user under 13 is sent to any third-party AI service.

4. Children's Privacy

LYCEON is designed for students aged 13 and over. A student under 13 may use LYCEON only as described in this Section. The **LYCEON Children's Online Privacy Notice** gives parents further detail.

4.1 Parent or Guardian Connection

A student under 13 cannot use any learning feature until a parent or guardian has connected to their account.

Until then, the account holds only the information needed to create it (name, email address, date of birth and sign-in details), the record of the sign-up agreements, and the technical data described in Section 1.3. No learning activity is collected.

If the student asks us to, we email their link code to the parent or guardian address they provide. We use that address only to send the email and to prevent misuse of this feature.

A parent or guardian connects by entering the student's link code in their own account and agreeing to the **LYCEON Parent / Guardian Terms**. A parent or guardian must be at least 18.

If the last connected parent or guardian disconnects, the student's learning features are no longer available.

4.2 AI Tutor

LISA is not available to users under 13.

4.3 Information Collected From Users Under 13

While a parent or guardian is connected, the information described in Section 1 is collected, except that an account of a user under 13:

- has no tutor conversations;
- is excluded from analytics and session recording;
- never receives marketing messages;
- never receives review invitations and cannot leave a review; and
- may send us private feedback, which we use only to improve the service.

4.4 Parent and Guardian Rights

A connected parent or guardian may review, correct or delete their child's information, or ask us to stop collecting it, at any time by contacting support@lyceon.ai.

Disconnecting ends the child's access to learning features. You may ask us to delete the child's information at the same time.

4.5 Consent

We obtain a parent's or guardian's consent to an under-13 student's use of LYCEON when the parent or guardian connects to the student's account.

5. How We Share Information

We share information only where necessary to operate the platform, where you direct us to, or where the law requires it.

5.1 With a Connected Parent or Guardian

A connected parent or guardian can see the student's progress and practice activity, skill-level progress, practice test results and study plan. Some of this is available only while the student has a paid subscription.

A connected parent or guardian cannot see the student's conversations with LISA.

5.2 Service Providers

We share information with the following service providers, which process it only on our instructions. The **LYCEON Sub-Processor List** gives further detail.

Provider	Purpose	Information processed
Supabase	Database and authentication	Account data, learning data
Vercel	Application hosting and delivery	Request and log data, including IP address
Stripe	Payment processing	Payer name, email address, billing address, payment method
Google Cloud	AI services and content safety; background processing	Tutor conversation content (users 13 and over); internal identifiers
Google	Sign in with Google, if you choose it	Google sign-in details
Resend	Email delivery	Email address and message content
Desmos	Graphing calculator	Technical browser data, such as IP address and browser type
Slack	Internal team notifications	Internal reference numbers

Provider	Purpose	Information processed
PostHog	Product analytics and session recording	Usage events and page interactions, as described in Section 9
Cloudflare	Security and bot protection (Turnstile)	Technical browser data
Trustpilot	Customer reviews	Name, email address and a reference number, to invite you to leave a review

Providers of AI services are contractually prohibited from using personal information to train public or general-purpose models.

5.3 Legal and Safety Reasons

We may disclose information where required to comply with legal obligations, respond to lawful requests, or protect the rights, safety or security of LYCEON, our users or others.

Where a tutor conversation raises a safety concern, we may review it and contact a connected parent or guardian or, where necessary, the appropriate authorities, as described in **Trust & Safety at LYCEON**.

5.4 No Sale or Sharing

We do not sell personal information and do not share it for cross-context behavioral advertising. See the **LYCEON Notice of Right to Opt Out of Sale or Sharing**.

5.5 Schools

Where a school or district contracts with LYCEON, we process student information on the school's behalf under a written data privacy agreement. In that role we act as a "school official" under the Family Educational Rights and Privacy Act (FERPA): we use student records only to provide the service to the school, we do not sell them or use them for advertising, and we return or delete them when the agreement ends. Parents of students using LYCEON through a school should contact the school to exercise their FERPA rights. See the **LYCEON School Data Privacy Addendum**.

6. Data Retention

We keep personal information only for as long as necessary for the purposes described in this policy, and we delete or de-identify it as set out below.

6.1 Account and Learning Data

While your account is open, we keep your profile, practice and test activity, and progress data.

Tutor conversations are kept while your subscription is active and are deleted seven days after it ends, unless you resubscribe within those seven days. If you have never subscribed, they are kept while your

account is open and deleted when your account is deleted.

In-app notifications are kept for 90 days.

6.2 Account Deletion

You may cancel a deletion request within 7 days of making it.

After 7 days, we permanently delete the information that identifies you, including your name, email address, date of birth and sign-in details. Your learning activity is de-identified so that it can no longer be linked to you.

We retain:

- **a record of your deletion request**, including your email address, for 24 months, after which the email address is removed;
- **records of consents given on the account**, for as long as necessary to demonstrate that consent was obtained; the IP address and browser information attached to them are removed 24 months after your deletion request is completed; and
- **payment records**, for 7 years, to meet tax and financial record-keeping obligations.

If you ask us not to contact you again, we keep your email address on a suppression list so that we can honour that request.

6.3 Billing Terms Consent

Records of consent to the Billing Terms are kept for at least three years from the date of consent, or one year after the subscription ends, whichever is longer.

6.4 Children

Information from an account of a user under 13 is kept for the periods in this Section. A parent or guardian may ask us to delete it at any time (Section 4.4).

6.5 Security Records

Records of sign-ins, security events and administrative actions are kept for 365 days. When you delete your account, your identity is removed from these records.

6.6 Analytics

Analytics events are kept for [●] months and session recordings for [●] days. We may keep aggregated analytics data that no longer relates to any individual.

6.7 Other Operational Records

Other operational records that include personal information are kept for no more than 90 days.

7. Data Security and Breach Notification

We use reasonable administrative, technical and organizational safeguards to protect personal information, including secure authentication, access controls, and monitoring and logging.

No system is completely secure. If a data breach compromises personal information, we will notify affected users and, where applicable, connected parents or guardians, in accordance with applicable law.

8. Your Rights and Choices

Depending on where you live, you may have the right to access your personal information, correct inaccurate information, request deletion, request a portable copy, restrict or object to certain processing, and withdraw consent.

Parents and guardians may exercise these rights on behalf of a connected student.

8.1 California Residents

Under the California Consumer Privacy Act, as amended, you have the right to know what personal information we collect, use and disclose; to delete it; to correct it; to obtain a portable copy; and not to be discriminated against for exercising these rights. The **LYCEON California Notice at Collection** lists the categories we collect.

We do not sell personal information and do not share it for cross-context behavioral advertising. We honor the Global Privacy Control signal (Section 9).

8.2 European Union, EEA and United Kingdom Residents

Where the GDPR or UK GDPR applies, we process personal information on the following legal bases:

- **performance of a contract**, to operate your account and subscription;
- **legitimate interests**, for platform security, abuse prevention, service improvement and review invitations;
- **consent**, for a parent's or guardian's connection to a student account, for non-essential cookies, analytics and session recording, for marketing messages, and for quoting a review; and
- **legal obligation**, where required.

You have the rights of access, rectification, erasure, restriction, portability and objection, the right to withdraw consent at any time, and the right to lodge a complaint with a supervisory authority.

8.3 Making a Request

Contact support@lyceon.ai. We will respond within the time required by applicable law and may need to verify your identity first.

9. Cookies, Analytics and Session Recording

We use cookies and similar technologies that are strictly necessary to keep you signed in, protect your account and remember your settings. These do not require your consent.

We do not use advertising or cross-site tracking cookies.

We use PostHog for product analytics and session recording:

- **Your choice.** We ask whether you accept analytics cookies when you first visit. You can change your choice at any time using the **Cookie settings** link.
- **Global Privacy Control.** If your browser sends a Global Privacy Control signal, we treat it as a refusal.
- **Session recording.** Session recording runs only if you accept analytics cookies. Text you enter is masked, and recordings do not include conversations with LISA.
- **Children.** Accounts of users under 13 are excluded from analytics and session recording.
- **Limited data.** We do not send names or email addresses to PostHog, and IP addresses are not stored.

The **LYCEON Cookie Policy** lists the cookies we use and how long they last.

10. International Transfers

LYCEON is operated from the United States. If you use LYCEON from outside the United States, your information may be transferred to and processed in the United States and other countries whose data protection laws differ from those of your country.

Where required, we rely on appropriate safeguards for international transfers, such as standard contractual clauses.

11. Changes to This Privacy Policy

We may update this Privacy Policy from time to time. Each version carries a version number and effective date.

If we make material changes, we will notify you through the platform or by other reasonable means before they take effect. Where the law requires your consent to a change, we will ask for it.

12. Contact

support@lyceon.ai

LYCEON AI [POSTAL ADDRESS]

Standard sources followed

- FTC Children's Online Privacy Protection Rule, 16 CFR Part 312, as amended in 2025 (§312.4(d) notice content; §312.10 data retention) — <https://www.ecfr.gov/current/title-16/chapter-I/subchapter-C/part-312>
- FTC, *Complying with COPPA: Frequently Asked Questions* — <https://www.ftc.gov/business-guidance/resources/complying-coppa-frequently-asked-questions>
- California Consumer Privacy Act regulations, 11 CCR §7011 (privacy policy) and §7025 (opt-out preference signals) — <https://coppa.ca.gov/regulations/>
- California Civil Code §1798.100, §1798.120, §1798.130 — <https://leginfo.legislature.ca.gov/>
- GDPR Articles 6, 7, 13 and 14 — <https://eur-lex.europa.eu/eli/reg/2016/679/oj>
- UK ICO, *Right to be informed* — <https://ico.org.uk/for-organisations/uk-gdpr-guidance-and-resources/individual-rights/the-right-to-be-informed/>
- FERPA, 34 CFR §99.31(a)(1)(i)(B), and U.S. Department of Education PTAC, *Protecting Student Privacy While Using Online Educational Services* — <https://studentprivacy.ed.gov/>

Counsel checklist

1. Confirm that the parental consent method in Section 4.1 meets 16 CFR §312.5(b).
2. Confirm whether 16 CFR §312.5(c)(1) requires deletion of an under-13 account's sign-up information if no parent or guardian connects within a set period.
3. Confirm the retention of consent records in Section 6.2.
4. Complete the analytics and session recording retention periods in Section 6.6.
5. Confirm whether any analytics may run before a cookie choice is made in the EU and UK (ePrivacy Directive Article 5(3)).
6. Confirm the characterization of Desmos and Trustpilot as service providers.
7. Confirm the legal basis for review invitations in Section 8.2.
8. Confirm the international transfer statement in Section 10.
9. Confirm the FERPA wording in Section 5.5.
10. Confirm the change-notice wording in Section 11.
11. Confirm that Section 5.2 and the Sub-Processor List are complete on the publication date.
12. Insert the postal address in Section 12.
13. Set retention periods for in-app reviews, private feedback and marketing-consent records (Sections 1.1 and 2). No period is stated in this draft. As built, each is kept until the account is deleted and is deleted with it; marketing-consent records are not otherwise expired.

14. Confirm that accepting private feedback from users under 13 (Section 4.3) is covered by the parental notice and consent in Sections 4.1 and 4.5.
15. Confirm the legal basis for keeping marketing-consent records after consent is withdrawn (Section 2), and for how long (item 13).

LYCEON Children's Online Privacy Notice

Version 1 · Effective date: [●]

For parents and guardians of students under 13

This notice explains what LYCEON collects from a student under 13, how we use it, and the choices available to you. It forms part of the **LYCEON Privacy Policy**.

1. Who We Are

LYCEON AI operates the LYCEON SAT preparation service.

- Email: support@lyceon.ai
 - Postal address: [POSTAL ADDRESS]
 - Telephone: [TELEPHONE]
-

2. Parent or Guardian Connection

LYCEON is designed for students aged 13 and over. A student under 13 can use LYCEON's learning features only while a parent or guardian is connected to their account.

- **Before you connect**, your child's account can be used only to connect a parent or guardian and to manage the account. We hold only the information needed to create it: name, email address, date of birth and sign-in details, the record of the sign-up agreements, and technical data such as IP address.
 - **If your child asks us to**, we email you their link code at the address they provide. We use your address only to send that email and to prevent misuse of this feature.
 - **You connect** by entering your child's link code in your own LYCEON account and agreeing to the **LYCEON Parent / Guardian Terms**. You must be at least 18.
 - **If you disconnect** and no other parent or guardian is connected, your child's learning features are no longer available.
-

3. Information We Collect

- **Account information:** name, email address, date of birth and sign-in details.
- **Learning activity:** answers to practice and test questions, progress and time spent.

- **Technical information:** device and browser type, IP address, and the cookies needed to keep your child signed in.

We collect only the information reasonably necessary for your child to use LYCEON, and we do not require more information as a condition of participation.

4. What We Do Not Do

- **No AI tutor.** LISA, our AI tutor, is not available to users under 13.
 - **No analytics or session recording.** Accounts of users under 13 are excluded.
 - **No marketing or review invitations.** We do not send them to users under 13.
 - **No advertising.** We do not show advertising, use your child's information for advertising, or sell or share it.
 - **No public profile.** Your child cannot make personal information publicly available.
-

5. How We Use Information

We use your child's information to provide the service, show their practice and progress, show you the information you are entitled to see, keep the account secure, and maintain the service.

6. Disclosure

- **To you, and any other connected parent or guardian,** as described in the Privacy Policy, Section 5.1.
 - **To our service providers,** only on our instructions and only to provide the service. These are listed in the **LYCEON Sub-Processor List**.
 - **Where required by law,** or to protect someone's safety.
-

7. Data Retention

We keep your child's information while the account is open. When the account is deleted, we delete the information that identifies your child after 7 days and de-identify the remaining learning records. Our full retention schedule is in Section 6 of the Privacy Policy.

8. Your Rights

At any time, you can:

- **review** the information we hold about your child;

- **correct** it;
- **delete** it, together with the account; and
- **refuse further collection**, by disconnecting or by asking us to close the account.

Email support@lyceon.ai from the address on your parent or guardian account. We may need to verify that you are the connected parent or guardian before acting on your request.

9. Changes

If we make a material change to how we collect, use or disclose your child's information, we will notify you and, where the law requires, obtain your consent before the change takes effect.

Standard sources followed

- FTC Children's Online Privacy Protection Rule, 16 CFR Part 312, as amended in 2025: §312.4(c)–(d), §312.5, §312.6, §312.7, §312.10 — <https://www.ecfr.gov/current/title-16/chapter-I/subchapter-C/part-312>
- FTC, *Complying with COPPA: Frequently Asked Questions* — <https://www.ftc.gov/business-guidance/resources/complying-coppa-frequently-asked-questions>
- UK ICO, *Age appropriate design: a code of practice for online services* — <https://ico.org.uk/for-organisations/uk-gdpr-guidance-and-resources/childrens-information/childrens-code-guidance-and-resources/>

Counsel checklist

1. Confirm that the parental consent method in Section 2 meets 16 CFR §312.5(b).
2. Confirm whether 16 CFR §312.5(c) permits holding the information described in Section 2 before a parent or guardian connects, and for how long.
3. Insert the postal address and telephone number in Section 1 (16 CFR §312.4(d)(1)).
4. Confirm whether referring to the Privacy Policy satisfies the retention policy requirement in 16 CFR §312.10.
5. Confirm that retaining de-identified learning records after deletion is consistent with 16 CFR §312.10.
6. Confirm whether jurisdiction-specific sections are required (Ireland, Australia, UK Children's Code).

LYCEON Parental Consent

Version 1 · Effective date: [●]

1. Connection Process

1. The student creates an account and provides their date of birth. If the student is under 13, learning features are unavailable until a parent or guardian connects.
2. The student gives their parent or guardian a link code. At the student's request, LYCEON emails the code to an address the student provides.
3. The parent or guardian signs in to their own LYCEON account. Parents and guardians must be at least 18.
4. The parent or guardian enters the link code, accepts the consent statement in Section 2, and submits. The student's learning features then become available.
5. If the last connected parent or guardian disconnects, the student's learning features are no longer available.

2. Consent Statement

Shown unticked. The request cannot be submitted until it is ticked.

☐ I am this student's parent or legal guardian, and I am at least 18. I have read and agree to the **Parent / Guardian Terms**, and I have read the **Privacy Policy** and the **Children's Online Privacy Notice**. I consent to my child's use of LYCEON as described in those documents, including the collection and use of my child's learning activity to provide the service.

Shown below the statement:

You can disconnect, or ask us to delete your child's information, at any time. Email support@lyceon.ai.

For a student aged 13 to 17, the last sentence of the statement reads: "I agree to my child's use of LYCEON as described in those documents."

3. Consent Record

For each consent, LYCEON records:

- the document and version accepted;
- the date and time;
- the parent or guardian account that gave consent; and
- the IP address and browser used.

Consent records are retained as described in Section 6.2 of the Privacy Policy.

4. Identity Verification

Consent relies on the parent's or guardian's acceptance, the age requirement for parent and guardian accounts, and the student's link code.

Standard sources followed

- FTC COPPA Rule, 16 CFR §312.5, as amended in 2025 — <https://www.ecfr.gov/current/title-16/chapter-I/subchapter-C/part-312>
- FTC, *Complying with COPPA: Frequently Asked Questions*, Section H — <https://www.ftc.gov/business-guidance/resources/complying-coppa-frequently-asked-questions>
- GDPR Article 8 — <https://eur-lex.europa.eu/eli/reg/2016/679/oj>

Counsel checklist

1. Confirm whether the process in Sections 1 to 4 is a verifiable parental consent method under 16 CFR §312.5(b), or which method must be added.
2. Confirm whether a payment-card transaction at checkout may serve as a verification method for subscribing families.
3. Confirm the consent statement, including the 13 to 17 variant.
4. Confirm that the consent record is adequate evidence of consent.
5. Confirm the position for jurisdictions with a digital age of consent above 13 (for example Ireland).

LYCEON Cookie Policy

Version 1 · Effective date: [●]

This Cookie Policy explains the cookies and similar technologies LYCEON uses, why we use them, and how you can control them. It supplements the **LYCEON Privacy Policy**.

1. What Cookies Are

Cookies are small text files that a website stores in your browser. Similar technologies include your browser's local storage and session storage. In this policy, "cookies" covers all of them.

2. Categories of Cookies

2.1 Strictly Necessary

These cookies are required for the service to work. They keep you signed in, protect your account and the website against misuse, and remember your settings. They do not require your consent.

2.2 Analytics

These cookies help us understand how the service is used so that we can improve it. They are set by PostHog **only if you accept analytics cookies**. Accounts of users under 13 are excluded.

2.3 Cookies We Do Not Use

We do not use advertising cookies, cross-site tracking cookies, or cookies that sell or share your information for advertising.

3. Cookies We Use

Name	Category	Provider	Purpose	Duration
sb-<project>-auth-token	Strictly necessary	LYCEON	Keeps you signed in	[●]
__Host-csrf	Strictly necessary	LYCEON	Protects your account against forged requests	[●]

Name	Category	Provider	Purpose	Duration
Sign-in verifier	Strictly necessary	LYCEON	Completes "Sign in with Google" securely	Until sign-in completes
lyceon - theme (local storage)	Strictly necessary	LYCEON	Remembers your display preference	Until you clear it
Device identifier (local storage)	Strictly necessary	LYCEON	Supports the operation of the service on your device	Until you clear it
Notice preference (session storage)	Strictly necessary	LYCEON	Remembers that you dismissed a notice	Until you close the tab
Cookie consent record	Strictly necessary	LYCEON	Remembers your cookie choice	6 months
Security check	Strictly necessary	Cloudflare (Turnstile)	Protects forms against automated abuse	[●]
ph_<project>_posthog	Analytics	PostHog	Distinguishes visits for analytics	[●]
lyceon_first_touch (session storage)	Analytics	LYCEON	Remembers how you first arrived (for example, from an ad or a search engine) until you create an account	Until you close the tab

4. Your Choices

- **Cookie banner.** When you first visit, we ask whether you accept analytics cookies. "Accept" and "Reject" are equally prominent, and you can choose by category.
- **Changing your choice.** Use the **Cookie settings** link at the bottom of any page, or your account settings, at any time.
- **Global Privacy Control.** If your browser sends a Global Privacy Control signal, we treat it as a refusal of analytics cookies.
- **Do Not Track.** We do not respond to Do Not Track signals. We honor Global Privacy Control.
- **Browser settings.** You can block or delete cookies in your browser settings. If you block strictly necessary cookies, some parts of the service will not work.

5. Third-Party Content

Math questions include the Desmos graphing calculator, which is loaded from desmos.com. When it loads, Desmos receives technical information from your browser, such as your IP address.

6. Changes

We will update this policy when the cookies we use change, and update the effective date.

7. Contact

support@lyceon.ai

Standard sources followed

- Directive 2002/58/EC (ePrivacy Directive), Article 5(3) — <https://eur-lex.europa.eu/eli/dir/2002/58/oj>
- EDPB Guidelines 05/2020 on consent — https://www.edpb.europa.eu/our-work-tools/our-documents/guidelines/guidelines-052020-consent-under-regulation-2016679_en
- UK ICO, *Guidance on the use of storage and access technologies* — <https://ico.org.uk/for-organisations/direct-marketing-and-privacy-and-electronic-communications/guidance-on-the-use-of-storage-and-access-technologies/>
- CNIL, cookies and other tracking devices — <https://www.cnil.fr/en/cookies-and-other-tracking-devices>
- California CCPA regulations, 11 CCR §7025 (opt-out preference signals) — <https://coppa.ca.gov/regulations/>
- Global Privacy Control specification — <https://globalprivacycontrol.org/>

Counsel checklist

1. Complete each duration marked [●].
2. Confirm the strictly necessary classification of each local storage and session storage item.
3. Confirm whether Desmos, Cloudflare Turnstile or any Trustpilot content on the website stores information in the browser, and whether any of it requires consent.
4. Confirm the 6-month duration of the cookie consent record.
5. Confirm that the Do Not Track statement meets Cal. Bus. & Prof. Code §22575(b)(5).

LYCEON Cookie Banner Text

Version 2 · Effective date: [●]

Banner

We use cookies

We use necessary cookies to make LYCEON work. With your permission, we'd also like to use analytics cookies to understand how people use the site and improve it. We don't use advertising cookies. **Cookie Policy**

[Reject all] [Accept all] [Cookie settings]

Cookie settings

Cookie settings

Strictly necessary — Always on Keep you signed in, protect your account and remember your settings.

Analytics — Off Help us understand how LYCEON is used, including recordings of how pages are used. Provided by PostHog.

[Reject all] [Save choices] [Accept all]

Global Privacy Control notice

Your browser sent a Global Privacy Control signal, so analytics cookies are off.

[OK]

Footer link

Cookie settings

Account settings

Cookies and analytics

Screen-reader labels

Cookie settings dialog: **Choose which cookies LYCEON may use.**

Global Privacy Control notice: **Global Privacy Control**

Standard sources followed

- EDPB Guidelines 03/2022 on deceptive design patterns — https://www.edpb.europa.eu/our-work-tools/our-documents/guidelines/guidelines-032022-deceptive-design-patterns-social-media_en
- EDPB Guidelines 05/2020 on consent — https://www.edpb.europa.eu/our-work-tools/our-documents/guidelines/guidelines-052020-consent-under-regulation-2016679_en
- UK ICO, *Guidance on the use of storage and access technologies* — <https://ico.org.uk/for-organisations/direct-marketing-and-privacy-and-electronic-communications/guidance-on-the-use-of-storage-and-access-technologies/>
- California CCPA regulations, 11 CCR §7004 (symmetry in choice) and §7025 (opt-out preference signals) — <https://coppa.ca.gov/regulations/>
- Global Privacy Control specification — <https://globalprivacycontrol.org/>

Counsel checklist

1. Confirm that the first layer provides clear and comprehensive information under ePrivacy Directive Article 5(3).
2. Confirm whether session recording requires a separate choice from analytics.
3. Confirm the Global Privacy Control handling for users in the EU and UK.
4. Confirm the 6-month interval before the choice is requested again.
5. Confirm the content and retention period of the consent record.

LYCEON California Notice at Collection

Version 1 · Effective date: [●]

If you live in California, this notice describes the personal information we collect, why we collect it and how long we keep it. Further details are in the **LYCEON Privacy Policy**.

Categories of Personal Information

Category	Examples	Purpose	Retention
Identifiers	Name, email address, account ID, IP address	To create and operate your account, keep it secure, contact you about the service and invite you to leave a review	While your account is open; on deletion, as described in Privacy Policy Section 6.2
Customer records	Billing name and address, subscription records	To process payments and manage subscriptions	Payment records: 7 years
Characteristics of protected classifications	Date of birth	To apply age requirements	While your account is open
Commercial information	Subscription purchased, billing period	To provide the service you purchased	Payment records: 7 years
Internet or other electronic network activity	Pages used, device and browser data, log data; analytics and session recording if you accept analytics cookies	To operate, secure and improve the service	Security records: 365 days; other operational records: up to 90 days; analytics: as described in Privacy Policy Section 6.6
Education information	Practice answers, progress, test results	To provide the learning service and show progress	While your account is open; de-identified on deletion
Electronic information	Text conversations with LISA (users 13 and over)	To provide the AI tutor	While your subscription is active, then 7 days
Sensitive personal information	Account login credentials	To let you sign in and keep your account secure	While your account is open

We do not collect precise geolocation, government identifiers, financial account numbers, health information or biometric information.

Sale and Sharing

We do not sell your personal information or share it for cross-context behavioral advertising, including the information of consumers under 16. See the **LYCEON Notice of Right to Opt Out of Sale or Sharing**.

Sensitive Personal Information

We use sensitive personal information only to provide the service and keep it secure.

Your Rights

You can request to know, delete or correct your personal information, and we will not discriminate against you for doing so. See Section 8.1 of the Privacy Policy or email support@lyceon.ai.

Privacy Policy: [link]

Standard sources followed

- California Civil Code §1798.100(a)–(b), §1798.120, §1798.121 — <https://leginfo.legislature.ca.gov/>
- California CCPA regulations, 11 CCR §7012 (notice at collection) and §7027(m) (sensitive personal information) — <https://coppa.ca.gov/regulations/>
- California Civil Code §1798.140(v) (categories of personal information)

Counsel checklist

1. Confirm the category mapping, including "education information" (§1798.140(v)(1)(J)) and the category for tutor conversation text.
2. Confirm that the retention periods meet 11 CCR §7012(e)(4).
3. Confirm the classification of date of birth.
4. Confirm placement at sign-up and checkout under 11 CCR §7012(c).
5. Confirm whether LYCEON meets a CCPA applicability threshold.

Your Privacy Choices: Sale and Sharing

Version 1 · Effective date: [●]

We Do Not Sell or Share Your Personal Information

LYCEON **does not sell** personal information and **does not share** it for cross-context behavioral advertising, as those terms are defined under California law. We have not done so in the past 12 months. We do not show advertising.

This includes the personal information of consumers under 16.

Service Providers

We use service providers for hosting, database, payments, email, AI services, product analytics, security and customer reviews. They process personal information only on our instructions and only to provide services to us, under contracts that prohibit them from using it for their own purposes. They are listed in the **LYCEON Sub-Processor List**.

Global Privacy Control

We honor the Global Privacy Control (GPC) signal. If your browser sends GPC, we treat it as:

- a request to opt out of the sale or sharing of your personal information; and
- a refusal of analytics cookies, so analytics and session recording do not run in that browser.

Changes to Our Practices

If we intend to sell or share personal information, we will update this notice and provide a way to opt out before doing so. For consumers under 16, we will obtain opt-in consent as required by law.

Contact

support@lyceon.ai

Standard sources followed

- California Civil Code §1798.120 and §1798.135 — <https://leginfo.legislature.ca.gov/>

- California CCPA regulations, 11 CCR §7013, §7025 and §7026 — <https://coppa.ca.gov/regulations/>
- Global Privacy Control specification — <https://globalprivacycontrol.org/>

Counsel checklist

1. Confirm whether this notice is required under 11 CCR §7013(a), and the title of the footer link.
2. Confirm that the PostHog and Trustpilot relationships are service-provider relationships and not "sharing" under §1798.140(ah).
3. Confirm how a GPC signal applies to a signed-in account under 11 CCR §7025(c)(1).
4. Confirm the wording covers universal opt-out mechanisms under other state laws (for example Colorado, Connecticut and Texas).

LYCEON AI Content Disclosure

Version 1 · Effective date: [●]

LYCEON uses artificial intelligence (AI) in parts of the service. This notice explains where AI is used and what to do if something looks wrong.

1. Where AI Is Used

- **LISA, the AI tutor.** LISA's explanations, hints and replies are **generated by AI**. LISA is available to students aged 13 and over with a paid subscription.
- **Automated results.** Practice scores, test scores and progress summaries are **calculated automatically** from the questions you answer.

Questions, answer explanations and articles in LYCEON are prepared by LYCEON.

2. Limitations

- **AI can be wrong.** LISA's responses may be incomplete, unclear or incorrect. Check them against the question and your own work.
 - **LISA is a study aid.** It is not a teacher, an official SAT source, or professional advice.
 - **No decisions about you.** LISA's responses do not change your scores, progress or account.
 - **Practice results are estimates.** Scores in LYCEON are not official SAT scores.
-

3. Safety

We use automated safety checks and human review to keep conversations with LISA appropriate. If a conversation suggests that someone may be at risk, we may review it and act as described in **Trust & Safety at LYCEON**.

4. Your Information

How tutor conversations are processed and how long they are kept is described in the **LYCEON Privacy Policy**. Conversations are not used to train public or general-purpose AI models.

5. Reporting a Problem

If LISA says something incorrect, inappropriate or concerning, email support@lyceon.ai with the approximate date and time.

6. Changes

We will update this notice as laws and our use of AI change, and update the effective date.

Standard sources followed

- Regulation (EU) 2024/1689 (AI Act), Article 50 — <https://eur-lex.europa.eu/eli/reg/2024/1689/oj>
- FTC, *Keep your AI claims in check* — <https://www.ftc.gov/business-guidance/blog/2023/02/keep-your-ai-claims-check>
- UK ICO, *Explaining decisions made with AI* — <https://ico.org.uk/for-organisations/uk-gdpr-guidance-and-resources/artificial-intelligence/explaining-decisions-made-with-artificial-intelligence/>

Counsel checklist

1. Confirm that Section 1 meets the transparency obligations in AI Act Article 50(1).
2. Assess whether the service is high-risk under AI Act Annex III.
3. Confirm the statement in Section 2 that no automated decisions with legal or similarly significant effects are made (GDPR Article 22).
4. Confirm whether an Australian automated decision-making disclosure is required.
5. Confirm whether an in-product reporting option is required in addition to email.

LYCEON Marketing Communications Consent

Version 1 · Effective date: [●]

1. Consent Checkbox

Shown unticked at sign-up and in account settings, separately from acceptance of the Terms. It is not required to use LYCEON.

☐ **Send me occasional emails from LYCEON** with study tips, SAT news and updates about new features. I can unsubscribe at any time.

Shown below the checkbox:

We will still send emails about your account, such as sign-in, billing and safety messages. See our **Privacy Policy**.

The checkbox is not shown to users under 13.

2. What We Send

If you opt in, we may send:

- study tips and SAT preparation guides;
- SAT news relevant to students or parents;
- updates about new LYCEON features; and
- offers relating to LYCEON subscriptions.

3. Service Messages

Messages about your account and the service do not require this consent. These include sign-in and security messages, billing and renewal reminders, receipts, safety messages, changes to our terms, and notifications you have turned on.

4. Unsubscribing

- **Unsubscribe link:** every marketing email contains an **Unsubscribe** link. One click stops marketing emails; you do not need to sign in.
- **Account settings:** turn **Marketing emails** on or off at any time.
- **Email:** support@lyceon.ai.

We process unsubscribe requests promptly, and in any case within 10 business days.

5. Who Does Not Receive Marketing

- Users under 13.
- Anyone who has unsubscribed or asked us not to contact them.

6. Sender Identification

Each marketing email identifies LYCEON as the sender, includes our postal address, [POSTAL ADDRESS], and contains an unsubscribe link.

7. Consent Records

We record your choice, the date and time you made it, and where you made it.

Standard sources followed

- CAN-SPAM Act, 15 U.S.C. §7704, and FTC *CAN-SPAM Act: A Compliance Guide for Business* — <https://www.ftc.gov/business-guidance/resources/can-spam-act-compliance-guide-business>
- Canada's Anti-Spam Legislation (CASL), S.C. 2010, c. 23, s. 10, and CRTC guidance — <https://crtc.gc.ca/eng/com500/guide.htm>
- GDPR Article 7 and Directive 2002/58/EC Article 13 — <https://eur-lex.europa.eu/eli/reg/2016/679/oj>
- UK PECR regulation 22 and ICO direct marketing guidance — <https://ico.org.uk/for-organisations/direct-marketing-and-privacy-and-electronic-communications/>
- RFC 8058, *Signaling One-Click Functionality for List Email Headers* — <https://www.rfc-editor.org/rfc/rfc8058>

Counsel checklist

1. Confirm that marketing to students aged 13 to 17 who opt in is permitted in each launch market, and whether parental notice is required.
2. Confirm that the checkbox wording meets CASL's express consent requirements.
3. Insert the postal address in Section 6 (CAN-SPAM §7704(a)(5); CASL).
4. Confirm the consent record fields and their retention period after opt-out.
5. Confirm the unsubscribe processing wording.

LYCEON Billing Terms

Version 3 · Effective date: [●]

These Billing Terms are the Auto-Renewal Offer Terms for LYCEON subscriptions. They are presented before you complete checkout, and you are asked to agree to them separately from the LYCEON Terms of Use.

They summarise how billing works. The **LYCEON Subscription and Auto-Renewal Notice** and the **LYCEON Refund Policy** govern in full, and this page links to both.

At a Glance

Your subscription continues until you cancel. We charge the amount shown at checkout at the start of each Billing Period until you cancel.

You are paying for one student's access. Entitlement attaches to the student account you select at checkout. If you are a parent or guardian, paying does not give your own account premium access — you see your linked student's progress because *they* are subscribed.

You can cancel at any time, online, from your account settings. Cancelling stops future charges and you keep paid access until the end of the period you have already paid for.

First subscription: 7-day satisfaction guarantee. Full refund, no questions about whether you used it.

Renewal you forgot about: 3-day grace window if the Service has not been used since the charge.

If you are in the EU, EEA or UK, you have a statutory 14-day withdrawal right that takes precedence.

1. What You Are Buying

A LYCEON premium subscription for **one student account**.

Premium unlocks practice beyond the free plan's daily limit, the LISA tutor, full-length practice tests with score reports, skill-level progress and a study plan, and lets a linked parent or guardian see the student's progress.

The entitlement belongs to the student, not to the payer. A parent, guardian, or other third party may pay, and the paid access attaches to the student account selected at checkout. A guardian linked to a

subscribed student sees that student's progress data for as long as the student's subscription is active.

To subscribe for more than one student, you subscribe for each separately. Each student's access is independent.

2. Price and Billing Period

The price and Billing Period are shown at checkout before you pay, in your local currency, and are the amounts you are agreeing to when you consent to these Billing Terms.

LYCEON offers monthly, quarterly and annual Billing Periods. All three deliver the same premium access; they differ only in billing frequency and commitment.

Your subscription renews automatically at the end of each Billing Period, at the same price, charged to the payment method you provided, until you cancel.

We do not charge you for anything other than the price disclosed at checkout, or a price change made with advance notice under Section 5 of the Subscription and Auto-Renewal Notice. We do not enrol you in additional paid services without separate disclosure and separate consent.

3. Who May Subscribe

The person completing checkout must be at least 18 years old and authorised to use the payment method provided.

If the student is under 18, a parent or legal guardian who connects to their account agrees to the **LYCEON Parent / Guardian Terms**.

LYCEON subscriptions are currently available to payers with a billing address in the United States, Canada, the United Kingdom, Australia, New Zealand, Ireland and Singapore. If your billing address is outside these countries, we cannot provide a paid subscription, and any charge taken in error will be refunded.

4. Cancelling

Cancel online, at any time, from your account settings, through the customer portal. No phone call, no email, no retention conversation — the same medium in which you subscribed.

When you cancel:

- No further Renewal Charges occur
- You keep paid access until the end of the Billing Period you have already paid for

- The account reverts to the free tier; data and progress remain

You may also cancel by emailing support@lyceon.ai. This is an alternative, not a requirement — the online portal is the primary cancellation path.

5. Refunds

Governed in full by the **LYCEON Refund Policy**. In summary:

Situation	What you get
First subscription, within 7 days	Full refund, whether or not the Service was used
Renewal charge, within 3 days, unused since the charge	Full refund
Renewal charge outside that window	Reviewed case by case — contact us
EU / EEA / UK	Statutory 14-day withdrawal right, whichever is more favourable

When a refund is issued, the subscription is cancelled and the student's paid access ends. Free-tier access remains on the same account.

Either the Payer or the holder of the student account may request a refund, by emailing support@lyceon.ai with the account email and the charge concerned.

6. Reminders We Send You

- **Annual subscriptions:** a reminder before each renewal, and a mid-cycle acknowledgment
- **Shorter Billing Periods:** reminders as described in Section 4.2 of the Subscription and Auto-Renewal Notice
- **After you subscribe:** a confirmation containing these Billing Terms, your cancellation rights, and how to cancel
- **Before any price increase:** at least 30 days' advance written notice, with the option to cancel before it takes effect

Reminders go to the email address associated with the payment method — the Payer's address, which may differ from the student's account email.

7. Your Consent

By checking the box at checkout, you confirm that:

- You are at least 18 and authorised to use the payment method
- You agree your subscription renews automatically at the price and interval shown, until you cancel
- You understand the entitlement attaches to the student account selected, not to your own account if you are a guardian or third-party payer
- You have read these Billing Terms, the Subscription and Auto-Renewal Notice, and the Refund Policy

This consent is separate from your acceptance of the **LYCEON Student Terms of Use**, which you accepted when you created your account.

We keep a record of this consent — the date and time, the version of these Billing Terms, and the account it belongs to — for no less than three years, or one year after the subscription ends, whichever is longer.

8. Related Documents

- **LYCEON Subscription and Auto-Renewal Notice** — renewal mechanics, reminders, price changes, and your rights by region
- **LYCEON Refund Policy** — refund windows, how to request, what happens after
- **LYCEON Student Terms of Use** — using the platform
- **LYCEON Parent / Guardian Terms** — for guardians connected to a student account
- **LYCEON Privacy Policy** — how we handle your data

9. Changes to These Terms

Each version of this document carries a version number and effective date. When we make changes, we publish a new version with a new effective date, and the previous version remains available.

For changes that affect an existing subscription, we give at least 30 days' advance notice as described in Section 5 of the Subscription and Auto-Renewal Notice. Continued subscription after a change takes effect constitutes acceptance.

The version you agreed to at checkout governs your subscription until you receive notice of a change.

10. Contact

support@lyceon.ai

LYCEON AI

Standard sources followed

- California Automatic Renewal Law, Cal. Bus. & Prof. Code §17600–17606 (clear and conspicuous offer terms, affirmative consent, acknowledgment, online cancellation) — <https://leginfo.legislature.ca.gov/>
- Restore Online Shoppers' Confidence Act (ROSCA), 15 U.S.C. §8403 — <https://www.ftc.gov/legal-library/browse/statutes/restore-online-shoppers-confidence-act>
- FTC Act §5 and FTC guidance on clear and conspicuous disclosures (".com Disclosures") — <https://www.ftc.gov/business-guidance/resources/com-disclosures-how-make-effective-disclosures-digital-advertising>
- Consumer Contracts (Information, Cancellation and Additional Charges) Regulations 2013 (UK) and Directive 2011/83/EU Article 9 (14-day withdrawal) — <https://www.legislation.gov.uk/uksi/2013/3134>

Counsel checklist

1. Confirm that "practice beyond the free plan's daily limit" accurately describes the paid plan, and whether any per-session limit must be disclosed.
2. Confirm the description of parent and guardian access in Section 1.
3. Confirm whether the changes from version 2 require existing subscribers to consent again, or notice under Section 9.
4. Confirm consistency with the Subscription and Auto-Renewal Notice.

LYCEON School Data Privacy Addendum

Version 1 · Effective date: [●]

1. Data Privacy Agreement

Where a school, district or other educational agency (the "School") uses LYCEON for its students, LYCEON enters into the **Student Data Privacy Consortium (SDPC) National Data Privacy Agreement (NDPA)**, version 2, with the state-specific exhibit for the School's state where one exists. That agreement governs. This addendum summarizes its commitments.

Where the School uses its own data privacy agreement, LYCEON will review it against the same commitments.

2. Our Role

- **School official.** LYCEON acts as a "school official" with a "legitimate educational interest" under FERPA (34 CFR §99.31(a)(1)(i)(B)). We perform a service the School would otherwise perform itself, we are under the School's direct control with respect to the use and maintenance of education records, and we use them only for authorized purposes.
- **School control.** Student data provided by or through the School remains under the School's control. LYCEON processes it only to provide the service to the School.
- **Students under 13.** Where the School authorizes LYCEON's use for its students, LYCEON relies on that authorization in the school context only, consistent with FTC COPPA guidance, and uses the data only for the School's educational purpose.

3. Our Commitments

- **No sale or advertising.** We do not sell student data, use it for targeted advertising, or build profiles for non-educational purposes.
- **Use limitation.** We use student data only to provide the service under the agreement.
- **Sub-processors.** We bind each sub-processor to obligations at least as protective as ours. They are listed in the **LYCEON Sub-Processor List**.
- **Security.** We maintain reasonable administrative, technical and physical safeguards, aligned with the framework named in the agreement's security exhibit.
- **Breach notification.** We notify the School of a data breach affecting its student data within the period required by the agreement or applicable state law, whichever is shorter.

- **Access and correction.** We assist the School in responding to requests from parents and eligible students to review or correct education records.
- **Return and deletion.** When the agreement ends, or on the School's written request, we return or delete the School's student data within the period set by the agreement, and certify deletion on request. De-identified data is retained only as the agreement permits.
- **No re-disclosure.** We do not disclose student data except as the agreement permits or the law requires.

4. School Access

The School's authorized staff can view the progress and activity of the School's own students, as set out in the agreement.

5. Contact

support@lyceon.ai

Standard sources followed

- Student Data Privacy Consortium, National Data Privacy Agreement v2 and state exhibits — <https://privacy.a4l.org/national-dpa/>
- FERPA, 20 U.S.C. §1232g; 34 CFR Part 99, §99.31(a)(1)(i)(B) — <https://www.ecfr.gov/current/title-34/subtitle-A/part-99>
- U.S. Department of Education PTAC, *Protecting Student Privacy While Using Online Educational Services: Requirements and Best Practices* — <https://studentprivacy.ed.gov/>
- FTC, *Complying with COPPA: Frequently Asked Questions*, Section N — <https://www.ftc.gov/business-guidance/resources/complying-coppa-frequently-asked-questions>
- California SOIPA, Bus. & Prof. Code §22584

Counsel checklist

1. Confirm the school authorization wording in Section 2.
2. Confirm the standard position on de-identified data after termination.
3. Name the security framework for the NDPA security exhibit.
4. Confirm which state exhibits to prepare first.
5. Confirm whether this addendum is published or supplied to schools on request.

LYCEON Sub-Processors

Last updated: [●]

The following service providers process personal information on LYCEON's behalf. Each processes it only on our instructions and only to provide its service to us.

Provider	Service	Personal information processed	Location
Supabase	Database and authentication	Account data, learning data	[●]
Vercel	Application hosting and delivery	Request and log data, including IP address	[●]
Stripe	Payment processing	Payer name, email address, billing address, payment method	[●]
Google Cloud	AI services and content safety; background processing	Tutor conversation text (users 13 and over); internal identifiers	[●]
Google	Sign in with Google	Google sign-in details	[●]
Resend	Email delivery	Email address, message content	[●]
Desmos	Graphing calculator	Technical browser data, such as IP address	[●]
Slack	Internal team notifications	Internal reference numbers	[●]
PostHog	Product analytics and session recording	Usage events and page interactions	[●]
Cloudflare	Security and bot protection (Turnstile)	Technical browser data	[●]
Trustpilot	Customer reviews	Name, email address, reference number	[●]

We will update this list before engaging a new sub-processor that processes personal information.

Standard sources followed

- GDPR Article 28(2) and (4), and Article 30 — <https://eur-lex.europa.eu/eli/reg/2016/679/oj>

Counsel checklist

1. Complete each location, and the transfer safeguard for each provider (standard contractual clauses, UK addendum or Data Privacy Framework).
2. Confirm the processor characterization of Desmos, Slack and Trustpilot.
3. Confirm whether to commit to a notice period before engaging a new sub-processor.
4. Confirm that a data processing agreement is in place with each provider.

5. Confirm that the list is complete on the publication date.